

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

Department 6

Honorable Rafael Sivilla-Jones, Presiding

191 North First Street, San Jose, CA 95113

Telephone: (408) 882-2160

July 21, 2026

9:00 A.M.

RECORDING COURT PROCEEDINGS IS PROHIBITED

ORAL ARGUMENT

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- (1) Court by calling (408) 808-6856 and
- (2) Other side by phone or email that you will appear at the hearing to contest the tentative

If you fail to so notify the court or opposing side, the Court will not hear argument, and the tentative ruling will be adopted. (California Rule of Court 3.1308(a)(1) and Local Rule 8.E.)

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LINE	CASE NO.	CASE TITLE	TENTATIVE RULING
9:00 1	24CV450589	Bastian Michel vs. Kumon North America, Inc., et.al.	See below.
9:00 2	26CV489118	John Shuler vs. Pamela Sheets, et.al.	Vacated.

Calendar Line 1

Case Name: *Bastian Michel et al. v. Kumon North America, Inc. et al.*

Case No.: 24CV450589

On June 24, 2024, plaintiff Bastian Michel (“Michel”), age seven, was dropped off at Kumon Willow Glen at or around 4:30 p.m. (Complaint, ¶ 12.) The assistant student teacher managing the center that day observed Michel in a class doing work on his iPad around that time. (*Ibid.*) At or around 5:32 pm, that same assistant student teacher noticed Michel was no longer present in his designated class and proceeded to log Michel out as being finished with his lesson for the day. (*Ibid.*) The assistant student teacher assumed that Michel’s parent(s) had picked him up, and that another assistant student teacher had walked him out. (*Ibid.*) However, Michel had freely walked out of Kumon Willow Glen’s doors without any adult on site ensuring he was being picked up by his mother. (*Ibid.*) Shortly after Michel left Kumon Willow Glen alone, Michel attempted to cross Willow Street when he was hit by a non-commercial vehicle operated by Juan David Corpus (“Corpus”) and suffered substantial injuries. (*Id.* at ¶ 13.)

In October 2024, Michel, by and through his Guardian ad Litem, Fechnel Michel, filed a complaint against Corpus, Kumon North America, Inc. (“Kumon North America”), and

Systematic Learnings, Inc. (“Systematic”) (collectively, “Defendants”), asserting the following causes of action: (1) negligent supervision of plaintiff against Kumon North America and Systematic and (2) negligent operation of vehicle against Corpus. On May 5, 2026, Kumon North America moved for summary judgment.

I. DISCUSSION

A. Legal Standard

The moving party bears the initial burden of production to make a prima facie showing that there are no triable issues of material fact. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850 (*Aguilar*)). “A defendant seeking summary judgment must show that at least one element of the plaintiff’s cause of action cannot be established, or that there is a complete defense to the cause of action. . . . The burden then shifts to the plaintiff to show there is a triable issue of material fact on that issue.” (*Alex R. Thomas & Co. v. Mutual Service Casualty Ins. Co.* (2002) 98 Cal.App.4th 66, 72; internal citations omitted.) “There is a triable issue of material fact if, and only if, the evidence would allow a reasonable trier of fact to find the underlying fact in favor of the party opposing the motion in accordance with the applicable standard of proof.” (*Aguilar, supra*, at p. 850.) A “party cannot avoid summary judgment by asserting facts based on mere speculation and conjecture, but instead must produce admissible evidence raising a triable issue of fact.” (*Christina C. v. County of Orange* (2013) 220 Cal.App.4th 1371, 1378, internal citations and quotation marks omitted.)

B. Motion for Summary Judgment

Kumon North America argues that it owed no legal duty to protect Michel from injuries inflicted by a third party because Kumon Willow Glen was “independently owned, controlled, and operated” by franchisee Systematic. (Memorandum of Points and Authorities in Support of Motion for Summary Judgment (“MPA”), p. 6:16-19.) According to Kumon North America, Kumon North America franchises after-school centers to franchisees, who independently own and operate them. (*Id.* at p. 3:24-25.) Kumon North America states that Kumon Willow Glen is operated by Systematic and owned by Radha Iyer (“Iyer”). (*Id.* at p. 3:28.) Kumon North America further asserts that it was not involved with enrolling Michel in Kumon Willow Glen, Systematic’s employees supervised Michel, Kumon North America has had no interactions with Michel or his mother, and Iyer, rather than Kumon North America, hired, trained, and placed all employees present on the day of Michel’s injuries, including Aparna Vidwan (“Vidwan”), the employee who assumed responsibility for managing Kumon Willow Glen while Iyer was out of town. (*Id.* at p. 7:4-20.)

In response, Michel argues that (1) Michel has presented substantial evidence that Kumon North America retained and exercised authority over the “student-release procedures” at issue; (2) Kumon North America’s motion fails because it “largely addresses only” whether Michel may impose vicarious liability based upon the franchisor-franchisee relationship but the complaint’s first cause of action is not limited to vicarious liability; and (3) Kumon North America may be liable under an “ostensible agency” theory. (Opposition to Motion for Summary Judgment (“Opposition”), p. 4:9-28.)

The elements of a cause of action for negligence are duty, breach, causation, and damages. (*County of Santa Clara v. Atlantic Richfield Co.* (2006) 137 Cal.App.4th 292, 318.) The threshold element of a cause of action for negligence is the existence of a duty to use due care toward an interest of another that enjoys legal protection against unintentional invasion. (*Bily v. Arthur Young & Co.* (1992) 3 Cal.4th 370, 397.) However, under the doctrine of respondeat superior, an employer may be held vicariously liable for acts committed by an employee in the scope of employment. (*Lisa M. v. Henry Mayo Newhall Memorial Hospital* (1995) 12 Cal.4th 291, 310.)

In *Patterson v. Domino's Pizza, LLC* (2014) 60 Cal.4th 474 (*Patterson*), the California Supreme Court examined whether a franchisor has an employment or agency relationship with a franchisee and its employees for purposes of holding the franchisor vicariously liable for workplace injuries allegedly inflicted by one employee of a franchisee on another employee of the franchisee. (*Patterson, supra*, 60 Cal.4th at p. 478.) The Supreme Court determined that a franchisor has potential liability under a theory of vicarious liability where a franchisor has retained or assumed a general right of control over factors such as hiring, direction, supervision, discipline, discharge, and relevant day-to-day aspects of the workplace behavior of the franchisee's employees. (*Id.* at p. 478.)

Michel does not appear to dispute that Systematic operated Kumon Willow Glen as a franchisee of Kumon North America. (Opposition, p. 5:7-12 ["KNA is the franchisor of Kumon educational centers . . ."].) In fact, the complaint alleges that Systematic operated Kumon Willow Glen as a franchisee. (Complaint, ¶ 7.) With this in mind, Kumon North America submits evidence to the court that Systematic and Iyer hired and fired assistants at Kumon Willow Glen, it was Iyer's responsibility to "take care of the assistant's part," Iyer controlled how many assistants were present at Kumon Willow Glen, Iyer hired Vidwan to be her assistant, Iyer developed her own manual and digital check-in and check-out system for Kumon Willow Glen, Iyer trained her assistants to use these systems, and the digital system used by Systematic and Iyer was not created by Kumon North America. (Declaration of Curtis Smolar in Support of Motion for Summary Judgment ("Smolar Decl"), Ex. C at pp. 24:13-21, 28:5-21, 39:20-24, 41:14-42:2, 43:2-12, 121:19-123:1.) Kumon North America also submits evidence that Iyer signed a franchise agreement with Kumon North America. (*Id.*, Ex. C at p. 34:1-9; Ex. F.) This franchise agreement states that "You also agree that you are exclusively responsible for the terms and conditions of employment of your employees, including recruiting, hiring, firing, training, compensation, work hours and schedules, work assignments, safety and security, discipline, and supervision. . . ." (*Id.* at Ex. F at p. 12.)

The court finds that, under *Patterson*, Kumon North America has met its initial burden to establish that it owed no duty of care to Michel. In *Patterson*, "a male supervisor employed by a franchisee allegedly subjected a female subordinate to sexual harassment while they worked together at the franchisee's pizza store. The victim, who is the plaintiff herein, sued the franchisor, along with the harasser and franchisee." (*Patterson, supra*, 60 Cal.4th at p. 477, emphasis original.) The Supreme Court reversed the Court of Appeal's decision overturning the grant of summary judgment, noting that "the franchisor prescribed standards and procedures involving pizza making and delivery, general store operations, and brand image. These

standards were vigorously enforced through representatives of the franchisor who inspected franchised stores. However, there was considerable, essentially uncontradicted evidence that the *franchisee* made day-to-day decisions involving the hiring, supervision, and disciplining of his employees. Plaintiff herself testified that after the franchisee hired her, she followed his policy, and reported the alleged sexual harassment to him. The franchisee suspended the offender. Nothing contractually required or allowed the franchisor to intrude on this process.” (*Id.* at pp. 478-479, emphasis original.) Here, the complaint’s first cause of action for negligent supervision alleges that Kumon North America owed a duty to Michel to ensure Michel’s safety so as to prevent the possibility of a dangerous condition existing upon entering and exiting Kumon Willow Glen’s premises, to exercise reasonable care in distributing knowledge to guardians regarding pick up and drop off procedures at Kumon Willow Glen, to exercise reasonable care to implement policies to ensure a minor is safely reunited with their caregiver, and to train employees on appropriate pick up and drop off procedures. (Complaint, ¶ 19.) However, similar to *Patterson*, the evidence described above indicates to the court that Systematic and Iyer, Kumon North America’s franchisees, managed and made “day-to-day decisions” regarding these procedures and alleged duties.

The burden shifts to Michel to demonstrate the existence of a triable issue of material fact. To begin, the court notes that it is not persuaded by Michel’s “ostensible agency” argument. (Opposition, pp. 13:22-15:8.) “Civil Code section 2300 provides: An agency is ostensible when the principal intentionally, or by want of ordinary care, causes a third person to believe another to be his agent who is not really employed by him. . . . It is elementary that there are three requirements necessary before recovery may be had against a principal for the act of an ostensible agent. The person dealing with the agent must do so with belief in the agent’s authority and this belief must be a reasonable one; such belief must be generated by some act or neglect of the principal sought to be charged; and the third person in relying on the agent’s apparent authority must not be guilty of negligence.” (*Kaplan v. Coldwell Banker* (1997) 59 Cal.App.4th 741, 747 (*Kaplan*), internal citations and quotation marks omitted.) Michel directs the court to evidence that Kumon North America “held out the Willow Glen Center as part of the Kumon educational system. . . .” (Opposition, p. 14:17-24, citing Michel’s Separate Statement of Undisputed Material Facts (“Plaintiff’s SSUMF”), nos. 1-14.) The court is not persuaded. In *Kaplan*, the Court of Appeal found that the plaintiff had introduced evidence raising a triable issue of fact as to “ostensible agency.” (*Kaplan, supra*, 59 Cal.App.4th at p. 748.) Specifically, among other evidence, the plaintiff “relied on the large print” in an agreement and “believed that he was dealing with” the defendant. (*Id.* at pp. 747-748.) Here, as Kumon North America points out in reply, Michel does not direct the court to evidence that Michel’s parents enrolled Michel at Kumon Willow Glen based upon any “reasonable” belief in Kumon North America’s authority. (*Id.* at p. 747 [“The person dealing with the agent must do so with belief in the agent’s authority and this belief must be a reasonable one . . .”]; Reply in Support of Motion for Summary Judgment (“Reply”), pp. 8:27-9:7.)

Nor is the court persuaded by Michel’s argument that Kumon North America “itself owed duties to exercise reasonable care . . .” (Opposition, pp. 12:3-13:20.) A “franchisor is liable for the conduct of the franchisee only if the franchisor actually exercises control—or is reasonably believed to exercise control—over the ‘means and manner’ of the franchisee’s operation that caused the plaintiff’s alleged injury.” (*Pereda v. Atos Jiu Jitsu LLC* (2022) 85

Cal.App.5th 759, 770 (*Pereda*), citing *Patterson, supra*, 60 Cal.4th at pp. 478, 498.) The court reiterates that the complaint alleges, and Michel does not appear to dispute, that Systematic operates Kumon Willow Glen as a franchisee. (Complaint, ¶ 7 [Systematic “is a California corporation operating as a KUMON franchisee doing business as Kumon Math and Reading Center of Willow Glen . . .”].) The court is also not persuaded by *Artiglio v. Corning Inc.* (1998) 18 Cal.4th 604 (*Artiglio*), cited by Michel in opposition. (Opposition, p. 13:4-13.) In *Artiglio*, the California Supreme Court discussed the “good Samaritan rule.” (*Artiglio, supra*, 18 Cal.4th at p. 614 [“Plaintiffs’ claim, as indicated, is grounded in the theory of ‘Good Samaritan’ or negligent undertaking liability . . .”].) Michel offers no discussion as to how this “rule” applies here; nor does the complaint plead it as a theory of liability. (*Id.* at pp. 613-614 [“a negligent undertaking claim of liability to third parties requires evidence that: (1) the actor . . . undertook, gratuitously or for consideration, to render services to another . . .”], internal citation omitted.) Ultimately, as Michel points out, the “dispositive issue . . . is whether [Kumon North America] affirmatively undertook responsibility for the operational activity alleged to have caused Plaintiff’s injuries.” (Opposition, p. 13:2-3.) The court discusses Michel’s arguments and evidence on this point below.

Michel argues that it has submitted evidence to the court indicating that Kumon North America “retained and exercised authority over the very operational activity alleged to have caused Plaintiff’s injuries, namely the policies, training, communications, and oversight governing the release of enrolled minor students.” (Opposition, p. 9:16-18, citing Plaintiff’s SSUMF, nos. 1-14.)

First, the court is not persuaded by evidence that indicates Kumon North America and Systematics’ franchise agreement and operations manual “authorized KNA to modify operational requirements, monitor franchise compliance, evaluate Center operations, require corrective action, and, under specified circumstances, assume operational control of a Center.” (Opposition, p. 11:12-15, citing Plaintiff’s SSUMF, nos. 2-5, 11, 12.) Michel directs the court to language in the parties’ franchise agreement requiring that the franchisee agree to “strict compliance with the Kumon Method,” Kumon Willow Glen is required to “operate the Center under the name we assign to you,” Kumon North America has the right to visit Kumon Willow Glen and inspect it to determine whether Kumon Willow Glen “properly conduct[ed] instruction in the Kumon Method,” that Kumon Willow Glen and Iyer must “give us reasonable written advance notice” if Iyer planned to be absent from Kumon Willow Glen, and in the event of such an absence, Kumon North America “has the right, but not the obligation, to assume control of the operation of your Center during the period of your absence.” (Smolar Decl., Ex. F at pp. 5, 10-11, 13, 14.)

The court agrees with Kumon North America that the evidence described above “is precisely the type of franchise oversight that *Patterson* recognized as insufficient to impose liability.” (Reply, p. 3:19-20; see *Patterson, supra*, 60 Cal.4th at p. 478 [“Here, the franchisor prescribed standards and procedures involving pizza making and delivery, general store operations, and brand image. These standards were vigorously enforced through representatives of the franchisor who inspected franchised stores. However, there was considerable, essentially uncontradicted evidence that the *franchisee* made day-to-day decisions involving the hiring, supervision, and disciplining of his employees.”], emphasis original.) This evidence does not indicate to the court that Kumon North America retained or assumed a general right of control

over the procedures at issue—students entering and exiting Kumon Willow Glen—at the time of Michel’s injuries.

Next, Michel argues that Kumon North America “itself established the age-based student-release procedures implemented at the Willow Glen Center. The evidence further demonstrates that KNA created and required franchisees to utilize the ‘Notice to Parents,’ which addressed student arrival and departure and communicated expectations concerning parental responsibility for student pickup and dismissal.” (Opposition, p. 11:4-9, citing Plaintiff’s SSUMF, nos. 7, 8, 9, 10, 13.) Exhibit 19 to the deposition transcript of Robert Diplock is a document titled “Operations Manual” that includes a page describing the “Student Electronic Enrollment Package.” (Michel’s Appendix of Opposition Exhibits in Support of Opposition (“Michel’s Evidence”), Ex. 3 at p. 15.) This page appears to describe documents which must be completed by a parent or guardian before a student can be enrolled at “Kumon Centers.” (*Ibid.*) Michel also directs the court to Iyer’s deposition testimony. Iyer states that Kumon North America trained Iyer regarding “how kids are . . . dropped off and picked up,” including training regarding an age-based release policy. (*Id.*, Ex. 2 at pp. 25:20-27:25.) “Kumon corporate” “mandate[[d] that there had to be a parent on the premises when an older student was leaving the facility after a session” and Iyer also testified as her recollection of the contents of the operation manual Kumon North America provided to Iyer. (*Id.* at pp. 32:14-33:19, 34:9-35:25.) Iyer also testified that Kumon “corporate” provided her with ongoing “online training” and a “field consultant” visited Kumon Willow Glen “once a while in the period of like six months” and was available to “help regarding the worksheet.” (*Id.* at p. 36:3-37:25.) Iyer further testified that “Kumon corporate” “crafted” a “Notice to Parents” that Kumon North America required parents to sign prior to their children enrolling at Kumon Willow Glen. (*Id.* at pp. 75:11-78:15.) Iyer read out policies listed on this “Notice to Parents” form prior to parents enrolling their children at Kumon Willow Glen, including Michel’s parents. (*Ibid.*)

Evidence indicating that a “field consultant” periodically visited Kumon Willow Glen does not suggest to the court that Kumon North America retained or assumed a general right of control over Kumon Willow Glen, particularly given that this “field consultant” visited Kumon Willow Glen for reasons that appear unrelated to any “release” procedures potentially at issue here. (Michel’s Evidence, Ex. 1 at p. 10:10-18 [“As a field consultant in Kumon, our roles are, we are assigned a number of franchise locations that we visit regularly, and during these visits, we would be able to observe how the students are working on the curriculum, provide feedback on the curriculum, and ways in which the students could become stronger through the curriculum on academics of our worksheets and our product.”]; Ex. 2 at p. 37:3-23 [“If I need any help regarding the worksheet or anything, I can reach out to those FCs. . . . So the FCs, usually if they want, they come like every month, initially, at least, just to make things are, like, okay.”].) In fact, the Supreme Court in *Patterson* held that similar evidence was insufficient in circumstances similar to those here. (See *Patterson*, *supra*, 60 Cal.4th at pp. 478-479 [“These standards were vigorously enforced through representatives of the franchisor who inspected franchised stores. . . .”], emphasis original.)

This leaves evidence related to Iyer’s testimony that Kumon trained her for “how kids are . . . dropped off and picked up.” (Michel’s Evidence, Ex. 2 at pp. 25:20-27:25.) Iyer testified that Kumon North America trained Iyer that “kids ages of, you know, three to five, you know,

they are walked . . . out by an assistant to the door and handed over to the parents. But anything above, you know, they can – they can walk out of the center because Kumon is not a day care center.” (*Id.* at p. 26:5-10.) Iyer “ultimately implemented” this “guideline” at Kumon Willow Glen. (*Id.* at p. 27:16.)

The court agrees with Michel that this evidence demonstrates a triable issue of material fact. The complaint alleges that an assistant student teacher noticed that Michel, aged seven, “was no longer present in his designated class” and this student teacher “proceeded to log Plaintiff out as being finished with his lesson for the day. The assistant student teacher assumed that Plaintiff’s parent(s) picked him up, and that another assistant student teacher had walked him out. . . . Plaintiff freely walked out of Kumon Willow Glen’s doors without any adult on site ensuring he was being picked up by his mother.” (Complaint, ¶ 12.) Here, Michel has submitted evidence that Kumon North America trained Iyer that students aged five and above could exit Kumon Willow Glen unaccompanied by an adult and that Iyer implemented this training at Kumon Willow Glen. (Michel’s Evidence, Ex. 2 at pp. 26:5-27:16.) Michel has also submitted evidence to the court that a “notice” created by Kumon North America and provided to guardians at Kumon Willow Glen stated that “Kumon is not a day care center.” (*Id.* at pp. 28:24-29:2; 75:11-77:22.) Kumon North America “mandated” this policy. (*Id.* at p. 31:17-20.)

Kumon North America argues that the “alleged age-based procedure relied upon by Plaintiff concerns how a student is to be released once a release decision is made. Plaintiff’s theory, however, is that no authorized release occurred and that Plaintiff exited the Center without staff awareness.” (Reply, p. 5:9-12.) In reviewing Iyer’s testimony, it is not clear to the court that the training Iyer described did involve any “release decision.” Iyer testified that Kumon North America trained Iyer that “anything above [age five], you know, they can – they can walk out of the center because Kumon is not a day care center.” (Michel’s Evidence, Ex. 2 at pp. 26:5-10.) Iyer further confirmed that Kumon North America trained her that “kids who – older kids, those who are above the age of five, that those students could exit the facility on their own.” (*Id.* at p. 27:8-12.) This describes the circumstances alleged in the complaint.

Ultimately, then, the court finds that Michel has demonstrated a triable issue of material fact as to whether Kumon North America exercised control “over the ‘means and manner’ of the franchisee’s operation that caused the plaintiff’s alleged injury.” (*Pereda, supra*, 85 Cal.App.5th at p. 770.)

II. CONCLUSION

The court DENIES Kumon North America’s motion for summary judgment.